

HOUSE No. 2534

The Commonwealth of Massachusetts

PRESENTED BY:

Margaret R. Scarsdale

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act preserving access to hospital services.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>1/10/2025</i>
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	<i>3/3/2025</i>
<i>Christopher Richard Flanagan</i>	<i>1st Barnstable</i>	<i>4/15/2025</i>
<i>David Paul Linsky</i>	<i>5th Middlesex</i>	<i>10/7/2025</i>

HOUSE No. 2534

By Representative Scarsdale of Pepperell, a petition (accompanied by bill, House, No. 2534) of Margaret R. Scarsdale and Michael D. Brady that the Department of Public Health create a process for state receivership for certain hospitals or free-standing clinics that provides essential health services. Public Health.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2143 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act preserving access to hospital services.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 111 of the General Laws, as appearing in the 2020 Official Edition, is hereby
2 amended by adding at the end of section 51G the following new section:

3 (7) The department, in conjunction with other state departments or agencies, shall
4 promulgate regulations creating a process for state receivership for any hospital or free-standing
5 clinic that provides essential health services and (a) closes without providing the required 90-day
6 notice or (b) closes a hospital or free-standing clinic following a determination by the department
7 that a closure would constitute a discontinuation of services necessary for preserving access and
8 health status in the hospital or free-standing clinic's service area. These regulations shall include
9 a mechanism and source for funding said receivership.